Patient Pipeline: Customer Agreement Drafting Brief

Prepared October 6, 2026 | For the owner's lawyer

This is a factual drafting brief and decision checklist, not a customer agreement or legal advice. Have qualified counsel confirm the applicable laws and final language. Current software behavior and template defaults are not proof of approved business terms, enforceability, or regulatory compliance.

1. What we need from counsel

Please prepare a business-to-business software subscription agreement for Patient Pipeline, purchased by healthcare practices for use by their own staff. Deliver an editable Word master and a final PDF, with a reusable order form for customer-specific commercial terms.

Please also advise whether we need a separate Business Associate Agreement (BAA), data-processing/security addendum, privacy policy, acceptable-use policy, and electronic-signature/payment disclosures. Identify any operational changes required before the agreement can truthfully be used.

Please distinguish contractual protection from operational compliance. A disclaimer or customer indemnity cannot establish HIPAA compliance, cure unlawful outreach, or replace our own required safeguards.

2. Product and actual service scope

Patient Pipeline is a staff-led calling and follow-up platform for healthcare practices. Its two product functions are:

- Patient Reactivation: organizing outreach to inactive/past patients with guided scripts tailored to the service they previously received.
- Lead Follow-Up: organizing calls to new inquiries using scripts related to the campaign or offer that generated the inquiry.
- Supporting functions include contact/list import, follow-up queues and scheduling, recording call outcomes and notes, staff training content, and reporting. Confirm the purchased package and any feature limits on the order form.

The practice's staff make the calls and remain responsible for care, clinical judgment, and communications with patients. Do not describe Patient Pipeline as providing medical care, clinical diagnosis, a staffed call center, or autonomous AI calling.

The approved launch positioning offers Reactivation and Lead Follow-Up together. Numeric launch discounts, deadlines, and special pricing have not been established by that positioning; confirm actual offers.

Optional in-browser Twilio calling has been discussed, but must not be promised as an included, delivered feature without release verification. The selected proposed model is practice-owned Twilio accounts with usage billed directly by Twilio; initial scope is computers only and excludes call recording. Any extra Patient Pipeline fee remains undecided.

Confirm what onboarding, script customization, support, implementation, and training we actually commit to provide. Specify seat counts, number of locations, permitted affiliates, integrations, and any exclusions.

3. Identify the correct contracting parties

Confirm the owner's legal entity name, entity type, state of formation, business address, authorized signatory, and legal-notice contact. Patient Pipeline is the customer-facing brand; the current template identifies the company as Reactivation Power. Neither label should be assumed to establish the legal entity or a registered DBA.

For the customer, obtain its practice legal name and address, locations covered, authorized signatory, and billing/notice contact. Counsel should decide whether an owner guarantee is desired; collecting the owner's name is not itself a personal guarantee.

Confirm where customers will be sold the service, including U.S. states and any foreign markets. Select governing law, venue, and dispute-resolution provisions accordingly.

4. Commercial terms: confirm before drafting

The current agreement-generation defaults are:

- Initial term: 12 months.
- Monthly fee: $475.
- Setup fee: $475, editable or waivable for a particular agreement.
- Delay before recurring monthly billing: 30 days from setup-payment activation.
- Written notice in the template: 30 days.
- Template account scope: an owner account and up to five staff accounts.

These are SOFTWARE DEFAULTS, not confirmed current pricing, universal customer terms, or proof of live subscriptions. Customer-specific terms can differ. The owner must approve the final commercial schedule.

Clarify whether access during the initial 30 days is a free trial, included onboarding period, or another arrangement; the existing template describes access after signing/setup payment and monthly fees starting later. Do not market it as a cancellable free trial unless that is actually intended and implemented.

Decide: activation/start date when setup is waived; whether the term includes or follows the initial period; precise first and final installment dates; taxes; prorations; fee changes; late fees if any; refunds; failed payments; cure periods; suspension; and any early-termination rights or remaining-fee obligation.

If setup is paid at checkout rather than at signature, use that actual charging event in the agreement. Signing, payment, activation, and recurring-billing commencement are separate events.

5. Renewals, cancellation, and payment authorization

The current template describes a fixed initial term followed by month-to-month renewal, with written notice. It says no early cancellation without mutual agreement and continued responsibility for term fees. Counsel must assess and approve those provisions, required renewal disclosures/reminders, cancellation methods, and any applicable state subscription rules.

The customer portal currently allows the owner to request cancellation, acknowledges remaining payments, and schedules it for the contractual term end. After the fixed term, it schedules cancellation at the end of the current billing period. That implementation does not itself establish enforcement of the template's 30-day notice requirement. Reconcile the written policy and the software.

Administrative tools can issue full/partial refunds and cancel immediately or at a term/billing-period end. The agreement should distinguish discretionary exceptions, termination for breach, and customer cancellation rights. Define the effect of suspension and cancellation on access, outstanding fees, refunds, and data.

Stripe processes cards. The current template contemplates primary and backup cards, recurring/off-session charges, and backup-card retries following failure. Counsel should approve clear authorization for the amounts and permitted charging/retry behavior, revocation/update procedures, and payment records. Confirm the actual checkout requirements before describing two cards as universally mandatory.

Do not collect or put payment card numbers into the agreement. Distinguish raw card details held by Stripe from limited billing metadata held by the app.

6. Patient data, HIPAA, and security: a priority review

The app can handle identifying contact details, practice association, past-service information, outreach outcomes/notes, appointment/follow-up information, and lead source/campaign data. Counsel should confirm a complete data inventory with the technical team. A past-patient list or a person's association with a healthcare service may be protected information even without a medical chart.

Determine when customers are covered entities, whether we act as a business associate or another regulated service provider, and which separate privacy regimes apply to leads, non-covered practices, or consumer health data.

If a BAA is required, determine both customer-facing and downstream/subcontractor agreements, the covered services, plan eligibility, and actual technical safeguards. Do not assert that Patient Pipeline or its vendor chain is HIPAA-compliant simply because a BAA form exists.

Vendor/services to assess include Supabase (authentication/database), Replit (hosting/development environment), Stripe (payments), Resend (transactional email), Vercel Blob (private training-media storage), and GoHighLevel (website sales inquiries/appointments and relevant customer lead integrations). Twilio is a proposed optional calling service, not an assumed current processor. Map actual data flows: not every vendor necessarily receives patient information.

Ask the technical team for actual facts about access controls, tenant separation, encryption, backups, logging, support/admin access, incident handling, vendor contracts, and storage regions. We have not performed a compliance/security audit for this brief.

Specify data ownership and limited service-use rights; authorized users; permitted/prohibited uploaded content; customer instructions; access/correction/export assistance; retention and backup deletion; incident notification/cooperation; and post-termination retrieval/deletion. Mark unconfirmed safeguards and deadlines as decisions, not promises.

Any analytics or AI use should be specifically verified. Do not authorize advertising reuse, model training, or sale of patient data by assumption. Avoid patient data in tracking events, ordinary marketing emails, shared screenshots, and support materials.

7. Outreach and healthcare marketing

Please review federal/state calling, texting, email, do-not-call, consent, revocation, timing, and healthcare-marketing rules for the actual outreach methods. Distinguish past-patient reactivation from new campaign leads, manual staff calls from any future automated features, and treatment-related communications from marketing.

An existing patient relationship, a purchased lead list, or a submitted inquiry should not be treated as blanket permission for every channel or campaign. Allocate responsibility for lawful collection/use of lists, consent evidence, opt-outs, script approval, suppression, and staff conduct without purporting to eliminate our own obligations.

The old template restricts use to contacts with an existing customer relationship. That would conflict with the new-lead product; revise the service and acceptable-use provisions while retaining lawful-contact requirements.

The app does not promise appointments, revenue, a particular conversion rate, reimbursement outcomes, or clinical results. Counsel should review sales materials for statements that could contradict that limitation. Do not include or promise call recording in the present scope.

8. Other provisions counsel should settle

- License to the software, scripts, and training; customer ownership of uploaded data; restrictions on account sharing, resale, copying, scraping, and unlawful use.
- Confidentiality and appropriate access by staff and support personnel.
- Support scope, maintenance, outages, third-party dependencies, and any genuinely supported availability commitment.
- Warranties/disclaimers, limitation of liability, insurance requirements, and appropriately scoped indemnities. The old template uses a three-month-fees liability cap; counsel should choose the intended cap and exceptions, not treat that default as approved.
- Termination for breach, notice/cure rights, suspension for risk or nonpayment, remedies, and fees/data treatment after each type of termination.
- Contract hierarchy between the order form, service agreement, BAA, and other addenda; amendments; material-change notices; assignment; notices; dispute resolution; and governing law.

9. Electronic signing and app integration

The existing signing workflow supports customer-specific terms, section initials, typed/drawn signatures, electronic-signature consent, a saved signed document snapshot, and audit evidence including timestamps, IP address, and browser information. These features do not themselves prove legal sufficiency; counsel should review signatory authority, disclosures, acceptance, records, and applicable e-sign laws.

Edits to unsigned terms invalidate affected prior acceptance; signed versions must remain historically intact. The signed-copy email is currently sent on subscription activation/completion, rather than immediately upon signature. Counsel should decide whether the signed copy must be provided earlier and specify any required implementation change.

Ask counsel for a clean master organized in headings and paragraphs suitable for the existing signing page. Identify which sections require initials, which fields vary by customer, and whether a countersignature is required. Do not expect the app to preserve arbitrary Word tables or special layout without integration work.

Existing merge fields: full_name, business_name, business_address, phone, owner_name, owner_phone, email, term_months, monthly_amount, setup_fee, start_date, end_date, notice_days, trial_days, company_name, company_email, agreement_date.

Do not replace historical signed agreements with the new master. Decide separately how existing customers consent to any changes.

10. Owner's information to send with this brief

- Legal entity/DBA details, business and notice addresses, authorized signer, and chosen counsel/jurisdiction.
- Approved pricing, setup charges, term/renewal structure, cancellation/refund policy, seats/locations, support scope, and launch offer.
- Current template (attached as Appendix A), representative blank checkout/signing screens, payment flow, and

customer-facing sales promises.
- Intended customer types and markets, vendor/service inventory, existing vendor contracts/BAAs if any, and verified security/retention facts.
- Decisions on PHI acceptance, optional calling availability, insurance, guarantees, and handling existing customers.

Use blank or sanitized examples; do not send real patient lists, production credentials, card numbers, or unrelated customer records.

11. Requested deliverables and approval

Please return: (1) editable master agreement and order form; (2) final approved PDF; (3) required BAA/DPA and related policies/disclosures; (4) a short list of unresolved owner decisions; and (5) a list of software/operational changes required for the legal documents to match reality.

Approve the legal text and any required implementation changes together before sending the new agreement to customers. This brief does not alter any live agreement, billing terms, or customer records.

Appendix A: Existing template for counsel to review

The following is the current default agreement text from the app, with unresolved merge fields preserved. It is an existing implementation artifact, NOT counsel-approved final language. Individual stored agreements may contain different terms. The text contains legacy branding and scope issues identified above.

Parties and Services

This Service Agreement (the "Agreement") is between {{company_name}} ("Company", "we", "us") and {{business_name}}, located at {{business_address}} ("Customer", "you"), represented by {{full_name}}. The business owner of record is {{owner_name}} ({{owner_phone}}). Notices to Customer may be sent to {{email}} or {{phone}}.

Company will provide Customer with access to the Reactivation Power platform, which includes the reactivation call training courses, the call scripts, the reactivation dialer and contact pipeline, and reporting for Customer's team (the "Services"). Access is granted to the Customer's owner account and up to five staff accounts for use within Customer's own business only.

Term of Agreement [initials]

The initial term of this Agreement is {{term_months}} months (the "Term"). The Term begins on the Start Date, which is {{trial_days}} days after the setup fee is paid, and ends {{term_months}} months later (the "End Date"). Based on today's date, the estimated Start Date is {{start_date}} and the estimated End Date is {{end_date}}; the actual dates are fixed by the date the setup fee is charged.

Access to the Services begins as soon as the setup fee has been paid and this Agreement has been signed, so the {{trial_days}} days before the Start Date are included at no additional charge.

Fees and Billing [initials]

Customer agrees to pay a one-time setup fee of {{setup_fee}}, charged when this Agreement is signed, and a recurring monthly fee of {{monthly_amount}} for the Services. The first monthly fee is charged on the Start Date and on the same day of each month thereafter for the remainder of the Term. All amounts are in U.S. dollars. Fees are not refundable except as required by law.

If a monthly payment cannot be collected, Company may retry the charge, charge the backup card on file, and suspend access to the Services until the balance is paid. Customer remains responsible for all fees for the full Term.

Payment Authorization and Cards on File [initials]

Customer authorizes Company to keep two payment cards on file with its payment processor (Stripe) and to charge the primary card for every amount due under this Agreement. If a charge to the primary card fails, Customer authorizes Company to charge the backup card for the same amount. Customer agrees to keep at least one valid card on file for the whole Term and to update card details promptly when they change.

Card details are entered directly into Stripe and are never stored on Company's systems.

Cancellation and Notice [initials]

This Agreement may not be cancelled before the End Date except by written agreement of both parties. Either party may end this Agreement at the End Date by giving written notice at least {{notice_days}} days before the End Date. If neither party gives notice, this Agreement continues month to month at the then-current monthly fee until either party gives {{notice_days}} days' written notice.

Company may end this Agreement immediately if Customer misuses the Services, shares access outside its own business, or fails to pay an amount due within thirty (30) days of a written reminder.

Customer Responsibilities

Customer is responsible for the accuracy of the contact lists it uploads and for complying with all laws that apply to contacting its own past customers or patients, including telemarketing, privacy and health-information rules. Customer will use the Services only to contact people who have an existing relationship with Customer's business.

Customer will keep login details confidential, will not share accounts between people, and will let Company know promptly if it believes an account has been compromised.

Intellectual Property and Confidentiality

The Services, training content, scripts and software remain the property of Company. Customer receives a limited, non-transferable licence to use them for its own business during the Term and may not copy, resell, record or distribute them. Customer's contact data remains Customer's property; Company uses it only to provide the Services and keeps it confidential.

Disclaimer and Limitation of Liability [initials]

Company provides training and tools; results depend on how Customer's team uses them. Company does not guarantee any number of appointments, reactivated customers or revenue. To the fullest extent permitted by law, the Services are provided "as is", and Company's total liability under this Agreement is limited to the fees Customer paid in the three (3) months before the claim arose. Neither party is liable for indirect or consequential damages.

Electronic Signature and Entire Agreement

Customer agrees that signing this Agreement electronically, including by typing or drawing a signature and initialing sections, has the same effect as a handwritten signature, and that Company may keep this Agreement and its record of completion electronically. This Agreement, together with the amounts shown above, is the entire agreement between the parties about the Services and replaces any earlier discussions. It may only be changed in writing signed by both parties. Signed on {{agreement_date}}.